

STATE OF NEW YORK

6718--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 10, 2025

Introduced by M. of A. PHEFFER AMATO, LUPARDO, WOERNER, JONES, SCHIAVONI, CLARK, McMAHON, GRIFFIN -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to establishing alternative twenty and twenty-five year plans for certain officers of state law enforcement

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The retirement and social security law is amended by adding
2 two new sections 383-e and 383-f to read as follows:

3 § 383-e. Retirement of officers of state law enforcement; twenty year
4 retirement plan. a. Membership. Every non-seasonally appointed sworn
5 member or officer of the division of law enforcement in the department
6 of environmental conservation, a forest ranger in the service of the
7 department of environmental conservation, which shall mean a person who
8 serves on a full-time basis in the title of forest ranger I, forest
9 ranger II, forest ranger III, assistant superintendent of forest fire
10 control, superintendent of forest fire control or any successor titles
11 or new titles in the forest ranger title series in the department of
12 environmental conservation, a police officer in the department of envi-
13 ronmental conservation, the regional state park police, and university
14 police officers who enter or re-enter service in any such title whose
15 date of membership is on or after January ninth, two thousand ten in
16 such service on or before one year prior to the effective date of this
17 section may elect to be covered by the provisions of this section by
18 filing an election therefor with the comptroller. To be effective, such
19 election must be duly executed and acknowledged on a form prepared by
20 the comptroller for that purpose.

21 b. Retirement allowance. A member, covered by the provisions of this
22 section at the time of retirement, shall be entitled to retire upon

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 completion of twenty years of total creditable service in such titles,
2 and shall retire upon the attainment of the mandatory retirement age
3 prescribed by this section, by filing an application therefor in a
4 manner similar to that provided in section three hundred seventy of this
5 article.

6 1. Upon completion of twenty years of such service and upon retire-
7 ment, each such member shall receive a pension which, together with an
8 annuity for such years of service as provided in paragraph four of this
9 subdivision, shall be sufficient to provide such member with a retire-
10 ment allowance of one-half of such member's final average salary.

11 2. Upon completion of more than twenty years of such service and upon
12 retirement, each such member shall receive, for each year of service in
13 excess of twenty, an additional pension which, together with an annuity
14 for each such year as provided in paragraph four of this subdivision,
15 shall be equal to one-sixtieth of such member's final average salary,
16 provided, however, that the pension payable pursuant to this section
17 shall not exceed three-quarters of final average salary.

18 3. Upon attainment of the mandatory retirement age without completion
19 of twenty years of such service, each such member shall receive a
20 pension which, together with an annuity for such years of service as
21 provided in paragraph four of this subdivision, shall be equal to one-
22 fortieth of such member's final average salary for each year of credita-
23 ble service in such titles. Every such member shall also be entitled to
24 an additional pension equal to the pension for any creditable service
25 rendered while not an employee in such titles as provided under para-
26 graphs three and four of subdivision a of section three hundred seven-
27 ty-five of this article. This latter pension shall not increase the
28 total allowance to more than one-half of such member's final average
29 salary.

30 4. The annuity provided under paragraphs one, two and three of this
31 subdivision shall be the actuarial equivalent, at the time of retire-
32 ment, of the member's accumulated contributions based upon the rate of
33 contribution fixed under section three hundred eighty-three of this
34 title and upon the salaries earned while in such service. Such annuity
35 shall be computed as it would be if it were not reduced by the actuarial
36 equivalent of any outstanding loan nor by reason of the member's
37 election to decrease such member's contributions toward retirement in
38 order to apply the resulting amount toward payment of contributions for
39 old age and survivor's insurance. Any accumulated contributions in
40 excess of the amount required to provide the annuity computed pursuant
41 to this paragraph shall be used to increase the member's retirement
42 allowance.

43 c. Credit for previous service. In computing the years of total cred-
44 itable service for each member described herein, full credit shall be
45 given and full allowance shall be made for service rendered as a police
46 officer or state university peace officer or member of a police force or
47 department of a state park authority or commission or an organized
48 police force or department of a county, city, town, village, police
49 district, authority or other participating employer or member of the
50 capital police force in the office of general services while a member of
51 the New York state and local police and fire retirement system, of the
52 New York state and local employees' retirement system or of the New York
53 city police pension fund and for all service for which full credit has
54 been given and full allowance made pursuant to the provisions of section
55 three hundred seventy-five-h of this article provided, however, that
56 full credit pursuant to the provisions of such section shall mean only

1 such service as would be creditable service pursuant to the provisions
2 of section three hundred eighty-three, three hundred eighty-three-a,
3 three hundred eighty-three-b, as added by chapter six hundred seventy-
4 four of the laws of nineteen hundred eighty-six, three hundred eighty-
5 three-b, as added by chapter six hundred seventy-seven of the laws of
6 nineteen hundred eighty-six, three hundred eighty-three-c or three
7 hundred eighty-three-d of this title or pursuant to the provisions of
8 title thirteen of the administrative code of the city of New York for
9 any member contributing pursuant to this section who transferred to the
10 jurisdiction of the department of environmental conservation including
11 but not limited to environmental conservation officers and forest
12 rangers, regional state park police or state university of New York
13 peace officers.

14 d. Retirement for cause. Upon receipt of a certificate from the head
15 of the entity where such member is employed or such member's designee, a
16 member as described in subdivision a of this section, who has accrued
17 twenty-five or more years of service credit under this section shall be
18 retired on the first day of the second month next succeeding the date
19 such certificate was filed with the comptroller.

20 e. Credit for military service. In computing the years of total cred-
21 itable service full credit shall be given and full allowance shall be
22 made for service of such member in war after world war I as defined in
23 section three hundred two of this article, provided such member at the
24 time of such member's entrance into the armed forces was in police
25 service as defined in subdivision eleven of section three hundred two of
26 this article.

27 f. Transfer of membership to employees' retirement system. Any member
28 currently enrolled pursuant to this section and who previously trans-
29 ferred service credit from the New York state and local employees'
30 retirement system to the New York state and local police and fire
31 retirement system, may elect to transfer such previously transferred
32 service credit back to the New York state and local employees' retire-
33 ment system, and such member shall have the option to retroactively
34 transfer such member's membership into such employees' retirement
35 system.

36 g. The provisions of this section shall be controlling, notwithstand-
37 ing any provision of this article to the contrary.

38 § 383-f. Retirement of officers of state law enforcement; alternative
39 twenty-five year retirement plan. a. Membership. Every non-seasonally
40 appointed sworn member or officer of the division of law enforcement in
41 the department of environmental conservation, a forest ranger in the
42 service of the department of environmental conservation, which shall
43 mean a person who serves on a full-time basis in the title of forest
44 ranger I, forest ranger II, forest ranger III, assistant superintendent
45 of forest fire control, or any successor titles or new titles in the
46 forest ranger title series in the department of environmental conserva-
47 tion, a police officer in the department of environmental conservation,
48 the regional state park police, and university police officers whose
49 date of membership is prior to January ninth, two thousand ten in such
50 service within one year of the effective date of this section or within
51 one year of employment in an eligible title, whichever is later, may
52 elect to be covered by the provisions of this section by filing an
53 election therefor with the comptroller. Upon completion of twenty-five
54 years of such service and upon retirement, each such member shall
55 receive a pension which, together with an annuity, if any, which shall
56 be the actuarial equivalent of such member's accumulated contributions

1 at the time of their retirement and an additional pension which is the
2 actuarial equivalent of the reserve-for-increased-take-home-pay to which
3 such member may then be entitled, if any, shall be sufficient to provide
4 such member with a retirement allowance equal to 58.333 percent of their
5 final average salary. To be effective, such election must be duly
6 executed and acknowledged on a form prepared by the comptroller for such
7 purpose.

8 b. Retirement allowance. 1. A member, covered by the provisions of
9 this section at the time of retirement, shall be entitled to retire upon
10 completion of twenty-five years of total creditable service in such
11 titles by filing an application therefor in a manner similar to that
12 provided in section three hundred seventy of this article.

13 2. Upon completion of more than twenty-five years of such service and
14 upon retirement, each such member shall receive, for each year of
15 service in excess of twenty-five, an additional pension which, together
16 with an annuity for each such year as provided in paragraph three of
17 this subdivision, shall be equal to one-sixtieth of their final average
18 salary, provided, however, that the pension payable pursuant to this
19 section shall not exceed three-quarters of such member's final average
20 salary.

21 3. The annuity provided under paragraph two of this subdivision shall
22 be the actuarial equivalent, at the time of retirement, of the member's
23 accumulated contributions based upon the rate of contributions fixed
24 under section three hundred eighty-three of this title and upon the
25 salaries earned while in such service. Such annuity shall be computed as
26 it would be if it were not reduced by the actuarial equivalent of any
27 outstanding loan nor by reason of the member's election to decrease such
28 member's contributions for old age and survivor's insurance. Any accumu-
29 lated contributions in excess of the amount required to provide the
30 annuity computed pursuant to this paragraph shall be used to increase
31 the member's retirement allowance.

32 c. Credit for previous service. In computing the years of total cred-
33 itable service for each member described herein, full credit shall be
34 given and full allowance shall be made for service rendered as a police
35 officer or state university peace officer or member of a police force or
36 department of a state park authority or commission or an organized
37 police force or department of a county, city, town, village, police
38 district, authority or other participating employer or member of the
39 capital police force in the office of general services while a member of
40 the New York state and local police and fire retirement system, of the
41 New York state and local employees' retirement system or of the New York
42 city police pension fund and for all service for which full credit has
43 been given and full allowance made pursuant to the provisions of section
44 three hundred seventy-five-h of this article provided, however, that
45 full credit pursuant to the provisions of such section shall mean only
46 such service as would be creditable service pursuant to the provisions
47 of section three hundred eighty-three, three hundred eighty-three-a,
48 three hundred eighty-three-b, as added by chapter six hundred seventy-
49 four of the laws of nineteen hundred eighty-six, three hundred eighty-
50 three-b, as added by chapter six hundred seventy-seven of the laws of
51 nineteen hundred eighty-six, three hundred eighty-three-c or three
52 hundred eighty-three-d of this title or pursuant to the provisions of
53 title thirteen of the administrative code of the city of New York for
54 any member contributing pursuant to this section who transferred to the
55 jurisdiction of the department of environmental conservation including
56 but not limited to environmental conservation officers and forest

1 rangers, regional state park police or state university of New York
2 peace officers.

3 § 2. Notwithstanding any other provision of law to the contrary, any
4 member of the New York state and local police and fire retirement system
5 who is covered by this act who became a member on or after July 1, 2009
6 and before January 9, 2010 who elects coverage under section 383-f of
7 the retirement and social security law pursuant to this act shall be
8 making an irrevocable election subject to all the terms and conditions
9 of article 11 of the retirement and social security law.

10 § 3. This act shall take effect on the first of January next succeed-
11 ing the date on which it shall have become a law.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would create §383-e and §383-f in the Retirement and Social Security Law (RSSL) providing new service retirement benefits to law enforcement officers employed by the State of New York, currently covered by the provisions of

- + RSSL §383-a: regional state park police;
- + RSSL §383-b: department of environmental conservation (DEC) police;
- + RSSL §383-b: office of general services capital police;
- + RSSL §383-c: DEC forest rangers;
- + RSSL §383-d: State University of New York police.

Currently, these members of the New York State and Local Police and Fire Retirement System (NYSLPFRS) are covered by a 25-year half-pay service retirement plan with up to 7 years of additional 60ths.

RSSL §383-e is available to officers whose date of membership is on or after January 9, 2010 (commonly called Tier 5 or Tier 6 members) and provides a 20-year half-pay service retirement plan with up to 15 years of additional 60ths.

RSSL §383-f is available to officers whose date of membership is before January 9, 2010 (commonly called Tier 1, Tier 2, or Tier 3 members). Members would be eligible to retire upon attaining 25-years of service credit. However, the benefit accruals would be equal to those under a 20-year half-pay service retirement plan with up to 15 years of additional 60ths.

Disability benefits are not expected to change.

If this bill is enacted during the 2025 Legislative Session, we anticipate that there will be an increase of approximately \$6.9 million in the annual contributions of the State of New York for the fiscal year ending March 31, 2026. While billing rates will immediately increase approximately 5% of salary, annual costs will vary over time and are expected to average 3.75% of salary in the long term.

In addition to the annual contributions discussed above, there will be an immediate past service cost of approximately \$96.2 million which will be borne by the State of New York as a one-time payment. This estimate assumes that payment will be made on March 1, 2026.

These estimated costs are based on 1,200 affected members employed by the State of New York, with annual salary of approximately \$123.8 million as of March 31, 2024.

Summary of relevant resources:

Membership data as of March 31, 2024 was used in measuring the impact of the proposed change, the same data used in the April 1, 2024 actuarial valuation. Distributions and other statistics can be found in the 2024 Report of the Actuary and the 2024 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2024 Annual Report to the Comptroller on Actuarial Assumptions, and the

Codes, Rules and Regulations of the State of New York: Audit and Control. The Market Assets and GASB Disclosures are found in the March 31, 2024 New York State and Local Retirement System Financial Statements and Supplementary Information.

This fiscal note does not constitute a legal opinion on the viability of the proposed change nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated March 26, 2025, and intended for use only during the 2025 Legislative Session, is Fiscal Note No. 2025-68. As Chief Actuary of the New York State and Local Retirement System, I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member.